

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO
Law and Motion Calendar
Honorable Nicole S. Healy
800 North Humboldt Street, San Mateo, CA 94401
Department 28, Courtroom I
Wednesday July 15, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM LINE 1	
23-CIV-02684	TXTSMARTER LLC, ET AL. VS. NURI OTUS
TXTSMARTER LLC NURI OTUS	DIANE AQUI PRO SE

Plaintiff TXTSMARTER, LLC AND TEXTSMARTER, INC.'s Motion for Evidentiary Sanctions; Request for Monetary Sanctions in the Amount of \$6,148.50

TENTATIVE RULING:

The Motion for Evidentiary Sanctions filed by plaintiffs Txtsmarter, LLC and Textsmarter, Inc. and Request for Monetary Sanctions is **DENIED without prejudice** for failure to establish proper service on defendant Nuri Otus. If plaintiffs can demonstrate that service was proper, the motion is **GRANTED** as to the request for monetary sanctions.

A. Proof of Service

The proof of service shows that plaintiffs served defendant electronically. An unrepresented party may consent to electronic service either by: (i) serving a notice on all parties and filing the notice with the court; or (ii) manifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2)-(3).) The act of electronic filing shall not be construed as express consent. (*Id.*, at § 1010.6, subd. (c)(3).) The court's records do not show a notice filed by defendant consenting to electronic service. Therefore, the court cannot conclude that defendant has been properly served with this Motion.

If plaintiffs claim such consent exists, they must appear and contest the tentative ruling and be prepared to show that defendant consented to electronic service.

B. Plaintiffs' Request for Discovery Sanctions

A trial court has broad discretion in selecting discovery sanctions and considers both the conduct being sanctioned and its effect on the party seeking discovery. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) In choosing a sanction, the court should attempt to tailor the sanction to the harm caused by the withheld discovery. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate terminating sanctions. That is, if a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Ibid.*)

Plaintiffs seek evidentiary and monetary sanctions. Specifically, plaintiffs ask the court to preclude any testimony from Otus regarding:

- (1) his claim for unpaid wages, including his assertion that he was to be paid \$300,000 per year;
- (2) any alleged agreement to defer his wages;
- (3) any alleged agreement that he was to be paid \$300,000 a year;
- (4) the amounts he was actually paid;
- (5) events leading up to the sale of assets to Txtsmarter, LLC in July/August of 2022 and Otus' resignation as Director and President;
- (6) Textsmarter, Inc.'s sale of assets to Txtsmarter, LLC, including Otus' involvement in drafting purchase agreements;
- (7) the liabilities assumed by Txtsmarter, LLC as part of the sale;
- (8) his failure to turn over specific assets under his control to Txtsmarter, LLC pursuant to the purchase agreements, and alleged defense related thereto; and;
- (9) defense of this claim and regarding his interference with contracts after his resignation from Textsmarter, Inc.

(Defts.' Notice, at pp. 1-2; defts.' Mem. at pp. 10-11.)

As an initial matter, evidentiary sanctions do not appear warranted because defendant appeared for his initial deposition, but not his continued deposition. After the court issued its November 17, 2025 Order for defendant to appear for his deposition, plaintiffs took his deposition on November 20, 2025. Defendant's deposition took place at 10:02 a.m. and ended at 3:56 p.m. with the understanding that it would be re-scheduled because the deposition had not been completed. (Aqui Decl., ¶ 23.)

On December 29, 2025, plaintiffs re-noticed defendant's deposition and sent multiple emails to follow up with defendant. Defendant refused to attend unless Eddie Green's deposition (a partner and witness in this case) occurred first. On January 28, 2026, plaintiffs sent a notice of continued deposition and request for production of documents at deposition noticing defendant's deposition for February 11, 2026. Defendant once again responded that his deposition would not go forward until after Green's deposition, demanded Green's availability, and threatened to file a motion for sanctions. Defendant did not serve any objections to the deposition notice or file a motion to quash. (Aqui Decl., ¶ 32.)

Otus has agreed to sit for the continued deposition but appears to be operating under the mistaken assumption that he has the right to take Green's deposition before he completes his own deposition. However, defendant did not object to the notice of continued deposition, did not file a motion for protective order regarding his continued deposition and has not opposed this Motion (although as discussed above it may not have been properly served). Moreover, at a case

management conference held on June 10, 2026, plaintiffs' counsel represented that they would provide Otus with dates for Green's deposition. And, at that same hearing, the court ordered Otus to complete his continued deposition. (See June 10, 2026 minute order.) Accordingly, Otus's failure to appear for his continued deposition is without merit.

Although plaintiffs are seeking evidentiary sanctions based on defendant's failure to appear for his continued deposition, they have not provided a copy of the deposition transcript. Instead, plaintiffs' counsel submitted a spreadsheet outlining topics and issues to be covered at the follow-up deposition. (Aqui Decl., exh. B.) The spreadsheet identifies the topics that plaintiffs claim they intended to depose defendant about at his continued deposition. (*Ibid.*) As noted above, plaintiffs seek to exclude evidence pertaining to these nine topics. (*Ibid.*)

The court cannot determine that evidentiary sanctions are warranted simply because plaintiffs' counsel claims these nine topics would have been covered at defendant's continued deposition. Because plaintiffs did not provide a copy of the deposition transcript, the court is being asked to assume that these topics were not covered at defendant's initial deposition, which lasted for approximately six hours. The court will not make assumptions about what questions were or were not asked or about defendant's responses during his initial deposition.

In addition, the court's November 17, 2025 Order denied without prejudice the request to compel the production of document responsive to Requests Nos. 1, 3, 13 and 20 in the Amended Notice of Deposition. The court found plaintiffs failed to address the good cause requirement for production of the documents. (Further, the Amended Notice of Deposition contains 18 requests, and therefore it does not appear that there is a request No. 20; see plaintiffs' Notice of Motion to Compel Depo., filed June 26, 2025, exh. B, Amended Notice of Deposition.) Regardless, plaintiffs' Notice of Continued Deposition for February 11, 2026, which was served by email, contains 24 requests. (Aqui Decl., ¶ 30, and exh. F.) This includes the same requests that the court found plaintiffs failed to establish good cause for compelling (Nos. 1, 3 and 13), along with new requests. Therefore, plaintiffs' continued notice of deposition appears to exceed the scope of the court's prior Order compelling defendant to appear for deposition. In other words, plaintiffs have not shown that evidentiary sanctions are warranted when the scope of their requested document requests exceeds what the court previously ordered.

Assuming plaintiffs can show that service was properly effected the court **DENIES** the requested evidentiary sanctions but **GRANTS** plaintiffs' request for monetary sanctions based on defendant's failure to appear at his continued deposition. Plaintiffs request \$6,148.50 in monetary sanctions. This amount is based on 12.3 hours @ \$495/hour (\$6,088.50) to prepare this Motion. (Leonard Decl.) Plaintiffs also request the \$60 filing fee for this Motion. (*Ibid.*) The court reduces that amount to \$4,950 (10 hours) plus the \$60 filing fee for a total of \$5,010, payable within thirty (30) days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 2**

23-CLJ-05839

WELLS FARGO BANK, N.A. VS. PATRICIA J. FERNANDEZ

WELLS FARGO BANK, N.A.
PATRICIA J. FERNANDEZ

ASHLEY MULHORN

Plaintiff Wells Fargo Bank, N.A.'s Motion to Vacate Dismissal Under C.C.P. § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion to vacate dismissal and enter judgment pursuant to the parties' stipulation against defendant Patricia J. Fernandez is **GRANTED**.

Under Code of Civil Procedure, section 664.6, the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party.

The parties entered into a stipulated settlement agreement which was filed with the court on April 4, 2024. A copy of the agreement is attached as Exhibit 1 to the Declaration of plaintiff's counsel Edgar B. Lopez, Esq., filed in support of the instant motion, which provides that judgment in the sum of \$14,548.24 would not be entered against defendant so long as defendant made monthly payments to plaintiff until defendant paid judgment amount in full. (Lopez Decl. exh. 1, ¶¶ 2 & 3.) In the event of default, the parties agreed that the court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of \$14,548.24, plus costs, minus credit for any payments actually made pursuant to the Stipulation. (*Id.*, ¶ 8, exh. 1, ¶ 8.) Defendant defaulted after making payments totaling \$8,548.24. (*Id.*, ¶ 5.) Plaintiff notified her in writing of the default on or about December 30, 2024 and provided her seven days to cure the default pursuant to their agreement. (*Id.*, ¶ 6, exh. 1, ¶ 10.)

Defendant's default is uncontroverted thus the court finds that plaintiff establishes being entitled to a judgment of \$6,445 under the terms of the parties' settlement agreement (the principal sum of \$14,548.24, plus costs of \$445, minus credit of \$8,548.24 for payments made.)

Judgment in the amount of \$6,445 shall be entered against defendant and payable upon entry of this order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 3**

24-CIV-08059

JACK RODRIGUEZ VS. GENERAL MOTORS LLC

JACK RODRIGUEZ
GENERAL MOTORS LLC

MARK P. ROMANO
MARY L. ARENS MCBRIDE

Defendant General Motors LLC's Motion for Summary Judgment or Summary Adjudication

TENTATIVE RULING:

Defendant General Motors LLC's Motion for Summary Judgment or Summary Adjudication is **GRANTED in part** and **DENIED in part**.

Plaintiff Jack Rodriguez's Objections to Evidence are **SUSTAINED**.

The notice of motion lists the incorrect location for the hearing. If the tentative ruling is contested, the hearing will be held in Department 28, Courtroom I, located at 800 North Humboldt Street, San Mateo.

The First Amended Complaint (FAC) asserts three causes of action concerning Rodriguez's purchase of a 2021 Chevrolet Tahoe manufactured by defendant General Motors LLC (GM). (See Feb. 25, 2026 FAC, ¶¶ 6–7.) One is for breach of express warranty under the Commercial Code, one is for breach of express warranty under common law, and one is for violation of the Magnuson–Moss Act. (*Id.*, at ¶¶ 9–42.) GM seeks summary judgment or, alternatively, summary adjudication of each of these three causes of action. The parties do not dispute that the cause of action based on the Magnuson–Moss Act is derivative of the other two such that it survives as long as at least one the two warranty causes of action stands.

As a preliminary matter, Rodriguez objects to the format of the separate statement, due to its listing of the material facts just once under the heading “facts common to all issues.” However, the California Rules of Court only require a separate statement to separately identify each cause of action that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to the cause of action that is the subject of the motion. (See Cal. Rules of Court, rule 3.1350(d).) The separate statement substantially complies with these requirements, and the court therefore considers the request for summary adjudication, made in the alternative, on the merits.

A. Legal Standard on Summary Judgment & Summary Adjudication

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted

show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

“A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit ...” (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (*Id.*, at subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party’s ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied — despite deficiencies in the opposition — if the burden has not been carried. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See’s Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

B. Breach of Warranty Under Commercial Code

According to GM, privity between the plaintiff and defendant is required to hold a defendant liable for breach of an express warranty under the Commercial Code. GM relies on *Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196 (*Ballesteros*), which stated: “The Commercial Code’s express warranty provisions are limited to warranties given by the seller directly to the buyer.” (*Id.*, at p. 1216.)

Rodriguez contends this statement of law should be disregarded as dicta. But the proposition was essential to the court’s analysis and thus part of the holding. In *Ballesteros*, the defendant vehicle manufacturer attempted to enforce an arbitration agreement contained in the sales contract between the plaintiff and the dealership who sold the car. (*Ballesteros, supra*, 109 Cal.App.5th at p. 1201.) The manufacturer argued that, according to the Commercial Code, the express warranty on which the plaintiff’s claims were based was part of the sale contract and thus the plaintiff was estopped from disputing the enforceability of the arbitration agreement. (*Id.*, at p. 1205.) Had there been privity between the plaintiff and the manufacturer, the warranty *would* be governed by the Commercial Code and *would* be part of the sale contract. (*Id.*, at pp. 1216–

1217.) *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, 838–842, cited by the *Ballesteros* court, holds the same.

Of the California cases that Rodriguez cites suggesting that privity is not required for breach of express warranty *under the Commercial Code specifically*, none actually held the Commercial Code permits exceptions. For example, in *Hauter v. Zogarts* (1975) 14 Cal.3d 104, in “confront[ing] for the first time the California Uniform Commercial Code provisions relating to warranties,” the California Supreme Court noted that “[p]rivacy is not required for an action based upon an express warranty.” (*Id.*, at p. 114 & fn. 8.) But, it only did so in passing: the court was “not called upon in this case to resolve” issues raised by the supplantation of the former Uniform Sales Act and “[t]he parties [did] not discuss the changes wrought by the Uniform Commercial Code.” (*Id.*, at pp. 116–117.) Similarly, the Court of Appeal stated in *Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905 that “some express warranty claims [were] viable in this action, whether under the Commercial Code or Magnuson–Moss,” for a plaintiff not in direct privity, but only because the defendant manufacturer had conceded it and the issue was not in dispute in the case. (*Id.*, at p. 928.)

While it appears no California case is squarely on all fours with the present case and procedural posture, the law provides that direct privity is required for an express warranty claim brought solely under the Commercial Code.

Thus, by presenting undisputed evidence that GM did not sell the vehicle to Rodriguez, make any representations to Rodriguez, or provide any samples or models to Rodriguez (Feb. 27, 2026 Separate Statement [Def. Sep. Stmt.] no. 9) — apart from the express warranty being sued upon — GM has established that there is no issue of material fact to be tried regarding the cause of action for breach of express warranty under the Commercial Code.

C. Breach of Express Warranty Under Common Law

While a claim without privity under the Commercial Code may not be viable, the law is abundantly clear that privity is not required for a breach of express warranty under the common law: “privity is not a requirement for actions based upon an express warranty.” (*Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 500; accord *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 14; *Burr v. Sherwin Williams Co.* (1954) 42 Cal.2d 682, 696; *Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 957.)

GM admits, and its own evidence establishes, that the vehicle was covered by an express warranty that — by its own terms — extended to Rodriguez. (Def. Sep. Stmt., nos. 6–8; see Feb. 27, 2026 Declaration of Bryan Jensen, exh. C, at p. 4 [“This warranty ... is provided to the original and any subsequent owners of the vehicle during the warranty period”].) GM does not provide any evidence or argument that any other element of the cause of action cannot be established at trial, and thus fails to carry its initial burden of providing evidence sufficient to make out a prima facie case.

D. Conclusion

For the foregoing reasons, the motion for summary judgment is **DENIED**. The motion for summary adjudication is **GRANTED** as to the second cause of action and **DENIED** as to the first and third causes of action.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 4**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Form Interrogatories Set 2

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Form Interrogatories Set 2* is **GRANTED in part**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Form Interrogatories (FROGs) Set #2 on December 29, 2025. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 12, 2026. However, the January 2026 hearing of that motion was ordered off-calendar, and an informal discovery conference (IDC) scheduled instead. (Order, January 16, 2026.) A further version of the Motion was filed on March 5, 2026, and the instant Motion was filed on June 22, 2026. Because June 22, 2026 was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier-filed papers.

Except for a proof of service of the first version of the Motion filed on January 16, 2026, no other proof of service has been filed listing either the March version nor the June 22 version of the motion considered here. However, defendant has waived any defects in or irregularities of

notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

The court addressed the initial version of the Motion at an IDC. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp.1-2.) The Commissioner noted that, *inter alia*, "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, p.2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One (*id.*, p.3). (*See* Minute Order, December 17, 2025.) Accordingly, the Commissioner noted that plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, p.3.)

B. Defendant's Motion is Granted in Part

Plaintiff seeks further responses to his Form Interrogatories Set #2, Nos. 1.1, 12.1, 12.3, and 12.6. Plaintiff asserts that defendant's responses are incomplete, such as by failing to include telephone numbers and addresses as specified by the Form, and failing to include all known names of relevant persons. Plaintiff further asserts that defendant's objections are irrelevant or too general. (Code Civ. Proc., § 2030.300, subd. (a)(3).)

A propounding party may move to compel further responses where, as here, the responding party's responses are evasive or incomplete (Code Civ. Proc., § 2030.300, subd. (a)(1)), or incorporate meritless or overly general objections. (*Id.*, § 2030.300, subd. (a)(3).)

Having reviewed the moving, opposing, and reply papers, except for defendant's objections to FROG No. 1.1, defendant's objections appear not to consist of mere boilerplate or are irrelevant. However, certain of defendant's discovery responses are incomplete.

Defendant is required to state with particularity the efforts made to obtain and produce responsive information:

Verification of the answers is in effect a declaration that the party has disclosed all information which is available to him. If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He

cannot plead ignorance to information which can be obtained from sources under his control.

(*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782, superseded on other grounds; Code Civ. Proc., § 2030.220, subd. (c).)

Defendant's response to FROG No. 1.1 is incomplete. Although defendant indicates that because the person who assisted in preparing the responses is represented by defendant's counsel, any communications should be directed to counsel. However, counsel's contact information should have been included in the response. Moreover, it is unclear why the response is made "on information and/or belief." Defendant is therefore ordered to amend the response.

Defendant's responses to FROGs Nos. 12.1, and 12.6 are also incomplete, as the document or documents to which defendant refers are not attached, and defendant does not direct plaintiff to the pages and sections where the answers can be found, as instructed by the FROGs. FROG No. 12.6 also appears to require additional information regarding the authors or recipients of any reports.

In its Opposition, defendant cites Code of Civil Procedure, section 2030.230. (Opp., at p. 3 (misnumbered):19-21.) That statute provides in part that:

If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.

(Code Civ. Proc., § 2030.230.) While a party may supply documents in lieu of an answer to the interrogatory, it must state with specificity where the propounding party may find the answer to the interrogatory. Because the documents were not attached to the response, the court cannot determine whether merely identifying the documents is a sufficient response.

As to FROG No. 12.3, which seeks written or recorded statements from "any individual concerning the INCIDENT," SamTrans has responded by among other objections, asserting attorney work product and attorney-client privilege. (Pltf's Sep. Stmt., at p. 16, citing defendant's response to FROG No. 12.3; Code Civ. Proc., § 2018.030, subd. (a); *Coito v. Superior Court* (2012) 54 Cal.4th 480; *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214, 217.) To the extent that SamTrans conducted any interviews or obtained witness statements at the direction or with the assistance of counsel, such statements would appear to be privileged. However, defendant should state whether it is withholding any such

statements on the basis of the attorney work product and/or attorney-client privilege or whether no such statements exist.

FROG No. 12.6, seeks any “report” of the incident SamTrans has responded by referring plaintiff to the “Operator Incident Report, the Customer Service Recording Form dated May 31, 2024, and the Customer Service Recording Form dated May 20, 2024, which were previously produced.” (Pltf’s Sep. Stmt., at p. 20, citing defendant’s response to FROG No. 12.6.) It is unclear whether the reports themselves identify “(c) The name, ADDRESS, and telephone number of the PERSON for whom the report was made; and (d) The name, ADDRESS, and telephone number of each PERSON who has the original or a copy of the report.”

Defendant objects, including on the ground that the interrogatory seeks privileged information or would violate the privacy rights of third parties. The reports themselves are clearly not privileged, because they have been produced to plaintiff. To the extent that defendant has non-privileged information about the authors or recipients, it should be produced. It is unclear how this information would affect a third party’s privacy rights if the report was created or supplied to them in the course of their employment, particularly if they are identified in the reports.

Discovery motions are disfavored; the parties are required to meet and confer in good faith to attempt to reach a compromise. “A reasonable and good-faith attempt at informal resolution entails something more than bickering with deponent’s counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The discovery statutes “require[s] that there be a serious effort at negotiation and informal resolution.” (*Id.*, at p. 1438.) Here, the motion could have been avoided if the parties meaningfully met and conferred and discussed what evidence plaintiff sought and defendant’s responses.

Defendant shall have fifteen (15) days from notice of entry of this order to serve code-compliant responses to plaintiff’s Form Interrogatories Set #2, Nos. 1.1, 12.1, 12.3, and 12.6.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Production Set 3

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Production Set #3* (Motion) is **DENIED**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for “Premises Liability/Negligent Security,” is pled solely against SamTrans.

Defendant responded to plaintiff's Request for Production (RFP) Set #3 on January 20, 2026. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 29, 2026. Plaintiff then filed a further version of this Motion on March 5, 2026, and yet another version of this Motion on June 22, 2026. Because June 22, 2026, was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier filed papers.

No proof of service has been filed. However, defendant has waived any defects in or irregularities of notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

B. The Motion is Denied

Plaintiff seeks further responses to all of his Requests for Production (“RFP”) Set #3, Nos. 1-3. Plaintiff asserts that his requests are relevant to supporting his claims and locating evidence and witnesses.

Plaintiff states that during the alleged incident on May 17, 2024, he “noticed dozens of San Mateo County Transit District employees and vehicles within 100 meters of the incident,” and each bus has cameras, etc., installed. (Ramos Decl., ¶ 6.) Plaintiff now seeks to identify witnesses, and seeks audio and video recordings from defendant’s vehicles near to the bus on which the incident occurred. Specifically, he seeks location data for defendant’s vehicles and personnel that were within 100 meters of the bus he was riding on between 4 and 6 p.m. on May 17, 2024.

Plaintiff asserts that defendant’s objections thereto were irrelevant, unmeritorious, and unsupported. (Code Civ. Proc., § 2030.300, subd. (a)(3).)

A propounding party may move to compel further responses where the responding party’s statement of compliance is incomplete (Code Civ. Proc., § 2031.310, subd. (a)(1)), its representation of inability to comply is incomplete, inadequate, or evasive (*id.*, § 2031.310, subd. (a)(2)), or an objection is meritless or overly general. (*Id.*, § 2031.310, subd. (a)(3).)

Although some of defendant’s objections appear to include irrelevancies, defendant’s objections that the discovery requests are overbroad are well taken.

As to RFP No. 1, plaintiff seeks all location data of defendant’s buses that were within 100 meters of the bus on which plaintiff claims to have been attacked “at any time near the time in which INCIDENT was occurring (approximately between 4:00 pm and 6:00 pm), within 100 meters” as his bus “traveled from Belmont, Ca to Palo Alto, Ca.” (Pltf’s Motion, Sep. Stmt., at p. 10:3-8.) Plaintiff states that he seeks the identities of drivers who may have seen the incident, and vehicles that may have recordings. (*Id.*, at p. 11:8-13 [RFP No. 3].)

Plaintiff has alleged that the incident occurred on the bus on which he was a passenger and outside the bus at the Redwood City transit center. The request for location data of all buses within 100 meters of the bus on which plaintiff was allegedly injured is overbroad and disproportionate to this lawsuit. Indeed, plaintiff has offered no explanation for how the location of a bus or other vehicle within 100 meters of the bus he was riding in at the time of the incident would lead to the discovery of evidence regarding whether defendant failed in its obligations to “use the utmost care and diligence” for the “safe carriage” of plaintiff on the particular bus where he claimed to have been assaulted by a third party. (Civ. Code, § 2100; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224-225 (*Calcor*).) The request therefore does not “appear[] reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.)

As to RFP No. 2, plaintiff seeks the same data for “all NON-BUS VEHICLES[.]” Though the phrase “NON-BUS VEHICLES,” is capitalized, plaintiff has not defined this term. Plaintiff

explains that he seeks the identities of drivers who may have seen the incident, and vehicles that may have recordings thereof. (Pltf's Motion, Sep. Stmt., at p. 13:15-20.) However, even if the request is limited to non-bus vehicles that are owned or operated by SamTrans, the request is likewise overbroad and disproportionate. (*Calcor, supra*, 53 Cal.App.4th at pp. 224-225.)

As to RFP No. 3, plaintiff seeks the same data for defendant's employees. Plaintiff again explains that he seeks the identities of witnesses. (Pltf's Motion, Sep. Stmt., at p. 15:18-20.)

Defendant's objections range widely. However, the presence of every vehicle and every employee of defendant within 100 meters of the bus on which plaintiff is alleged to have been attacked, along a ten-mile route from Belmont to Palo Alto over the course of two hours is overbroad, and as defendant asserts in its Opposition, would result in the production of a substantial quantity of data unrelated to the incident, and would compromise the privacy interests of bystanders. There is no reason to believe that someone who was in a bus or other vehicle owned by SamTrans within 100 meters of the alleged incident was a "witness" to the incident. Accordingly, the request is overbroad and does not "appear[] reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010; *Calcor, supra*, 53 Cal.App.4th at pp. 224-225.)

In Reply, plaintiff declares that the incident took place partly outside the bus: "At the Redwood City Transit, the attacker attacked me outside of a bus and caused us to obstruct several San Mateo County Transit District vehicles." (Ramos Decl. in Reply, ¶ 5.) Plaintiff declares that during the incident, he interacted with many of defendant's employees, including at least one supervisor with whom he spoke. (*Id.*, ¶¶ 6-7.) Further, plaintiff claims he made eye contact with many of defendant's employees who were driving defendant's vehicles. (*Id.*, ¶ 4.)

Plaintiff's discovery requests are not limited to identifying those with whom he claims to have interacted, such as the supervisor who arrived in response to the bus driver's call, and those at the transit station. Had the parties engaged in a meaningful meet-and-confer process, plaintiff could have refocused his discovery requests to seek the identities of the persons he claims to have encountered (e.g., the supervisor, or other SamTrans employees) as well as others in the actual vicinity of the bus who allegedly saw the incident (e.g., the bus driver or other passengers, or other SamTrans personnel at the transit center). During the meet and confer process, plaintiff could have narrowed his overbroad discovery requests to focus on obtaining evidence pertaining to actual witnesses to the alleged incident, as well as any policies, practices, or procedures relating to defendant's efforts to secure safe carriage for its passengers.

Discovery motions are disfavored; the parties are required to meet and confer in good faith to attempt to reach a compromise. "A reasonable and good-faith attempt at informal resolution entails something more than bickering with deponent's counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The discovery statutes "require[s] that there be a serious effort at negotiation and informal resolution." (*Id.*, at p. 1438.)

For these reasons, the Motion is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 14

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 14* (Motion) is **DENIED**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC for "Premises Liability/Negligent Security" is pled solely against SamTrans.

Defendant responded to plaintiff's plaintiff's Special Interrogatories (SROGs) Set #14 on January 20, 2026. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 29, 2026. Plaintiff then filed a further version of this Motion on March 5, 2026, a further "First Amended" version of the Motion on March 25, 2026, and the instant Motion on June 22, 2026. Because June 22, 2026, was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier filed papers.

No proof of service has been filed. However, defendant has waived any defects in or irregularities of notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

Plaintiff brings the Motion seeking to compel defendant to respond further to his discovery requests.

B. The Motion Is Denied

Plaintiff seeks further responses to all of his Special Interrogatories (SROGs) Set #14, Nos. 1-4. Plaintiff asserts that his requests are relevant to supporting his claims, locating evidence and witnesses, and to supporting motions. He states that during the alleged incident on May 17, 2024, he “noticed dozens of San Mateo County Transit District employees and vehicles within 100 meters of the incident,” and each bus has cameras, etc., installed. (Ramos Decl. [SROGs 14], ¶ 6.)

Plaintiff asserts that defendant’s objections were irrelevant, unmeritorious, and unsupported. (Code Civ. Proc., § 2030.300, subd. (a)(3).)

A propounding party may move to compel further responses where the responding party’s responses are evasive or incomplete (Code Civ. Proc., § 2030.300, subd. (a)(1)), or incorporate meritless or overly general objections. (*Id.*, § 2030.300, subd. (a)(3).)

Having reviewed the moving, opposing, and reply papers, defendant’s objections appear to include irrelevancies. However, defendant’s objections that the discovery requests are overbroad are well taken.

SROGs Nos. 1 and 2 request the full names and other identifiers, respectively, for each of defendant’s employees who came within 100 meters of plaintiff’s bus during a two-hour window in which the incident occurred. The presence of every one of defendant’s employees within 100 meters of the bus on which plaintiff is alleged to have been assaulted along a ten-mile route from Belmont to Palo Alto over the course of two hours is overbroad, and as defendant asserts in Opposition, would compromise the privacy interests of bystanders. There is no reason to believe that someone who was in a bus or other vehicle owed by SamTrans within 100 meters of the alleged incident was a “witness” to the incident. Accordingly, the request is overbroad and does not “appear[] reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; *Calcor*, *supra*, 53 Cal.App.4th at pp. 224-225.)

SROGs Nos. 3 and 4 request identifiers for each of defendant’s buses, and “non-bus vehicles” that came within 100 meters of the bus plaintiff was riding on during a 1.5-hour window and two-hour window, respectively, in which the incident occurred. Even if the request is limited to buses and other vehicles that are owned or operated by SamTrans, the request is overbroad and disproportionate. Accordingly, the request does not “appear[] reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; *Calcor*, *supra*, 53 Cal.App.4th at pp. 224-225.)

In his Reply, plaintiff declares that the incident took place partly outside the bus: “At the Redwood City Transit, the attacker attacked me outside of a bus and caused us to obstruct several San Mateo County Transit District vehicles.” (Ramos Decl. in Reply, ¶ 5.) Plaintiff further declares that during the incident, he interacted with many of defendant’s employees, including at

least one supervisor with whom he spoke. (*Id.*, ¶¶ 6-7.) Further, plaintiff contends he made eye contact with many of defendant's employees who were driving defendant's vehicles. (*Id.*, ¶ 4.)

Plaintiff's discovery requests are not limited to identifying those with whom he claims to have interacted, such as the supervisor who arrived in response to the bus driver's call, and those at the transit station. Had the parties engaged in a meaningful meet-and-confer process, plaintiff could have refocused his discovery requests to seek the identities of the persons he claims to have encountered (e.g., the supervisor, or other SamTrans employees) as well as others in the actual vicinity of the bus who allegedly saw the incident (e.g., the bus driver or other passengers, or other SamTrans personnel at the transit center). During the meet and confer process, plaintiff should have narrowed his overbroad discovery requests to focus on obtaining evidence pertaining to actual witnesses to the alleged incident, as well as any policies, practices, or procedures relating to defendant's efforts to secure safe carriage for its passengers.

Discovery motions are disfavored; the parties are required to meet and confer in good faith to attempt to reach a compromise. "A reasonable and good-faith attempt at informal resolution entails something more than bickering with deponent's counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The discovery statutes "require[s] that there be a serious effort at negotiation and informal resolution." (*Id.*, at p. 1438.)

For these reasons, the Motion is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-00670

ARNETTA BROWN VS. BURLINGTON COAT FACTORY OF TEXAS, INC.

ARNETTA BROWN
BURLINGTON STORES INC.

ARTHUR C. LIPTON
KEVIN J. GRAMLING

Plaintiff Arnetta Brown's Motion for Trial Preference

TENTATIVE RULING:

Plaintiff Arnetta Brown's motion for trial preference is **GRANTED**. The parties are ordered to appear, either in person or by Zoom, at a trial setting conference in Department 28 on July 29, 2026 at 9:00 a.m.

Defendant's objections to Dr. Brode's declaration are **OVERRULED**. Defendant has not challenged Dr. Brode's qualifications to render a medical opinion and although the declaration is ambiguous as to which "condition," i.e., COPD or arthritis in both knees, has resulted in "fatigue, pain, cognitive decline, and physical weakness," defendant has not shown that plaintiff does not have these symptoms or that COPD is not a progressive disease.

Defendant's objections to Ms. Brown's declaration are **OVERRULED** as to her statements regarding her symptoms. The objections are **SUSTAINED** to the extent that Ms. Brown purports to relate any symptoms to the incident.

A party to a civil action who is over 70 years of age may petition for trial preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc., § 36, subd. (a).)

The court finds that Ms. Brown, the sole plaintiff in this action, "has a substantial interest in the action as a whole."

Ms. Brown is 80 years old. Her physician, Dr. Erica C. Brode, M.D., states that plaintiff suffers from chronic obstructive pulmonary disease, a progressive disease; fatigue, pain, cognitive decline, and physical weakness; severe arthritis in both knees; and in Dr. Brode's medical opinion, Ms. Brown's health and ability to meaningfully participate in this lawsuit are expected to deteriorate further. (Declaration of Dr. Erica C. Brode, M.D., ¶¶ 5-9; see also Declaration of Arnetta Brown, ¶¶ 5-12.) Based on the unrefuted evidence submitted, the court finds that Ms. Brown's health is such that a preference is necessary to prevent prejudicing her interest in the litigation.

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 8**

25-CIV-01680

NEWTEK SOLUTIONS, INC. VS. SHANE MCBRIDE, ET AL.

NEWTEK SOLUTIONS, INC.
SHANE MCBRIDE

ANDREW C. MCCLELLAND
PRO SE

Order to Show Cause Hearing

TENTATIVE RULING:

This matter is continued to July 29, 2026 at 9:00 a.m.

02:00 PM **LINE 9**

25-CLJ-00490

BLACK DIAMOND PAVER STONES & LANDSCAPE, INC. VS. NAOMI B. TURE, ET AL.

BLACK DIAMOND PAVER STONES & LANDSCAPE, INC.
NAOMI B. TURE

ANTHONY J. KEILEY
ERNEST BROWN

Plaintiff and Cross-Defendant Black Diamond Paver Stones & Landscape, Inc.'s Motion to Change its Attorney of Record

TENTATIVE RULING:

Plaintiff and cross-defendant Black Diamond Paver Stones & Landscape, Inc.'s Motion to Change its Attorney of Record is **GRANTED**.

Plaintiff had been represented by Anthony J. Keiley, III, Esq. (State Bar No. 104578), of the Law Offices of Anthony J. Keiley, III. Mr. Keiley has died and plaintiff seeks an order permitting it to change its attorney of record to Patrick J. Whitehorn, of Last, Faoro & Whitehorn pursuant to Code of Civil Procedure, section 284.

Mr. Keiley was a sole practitioner and had no partners or other co-counsel to take over this case upon his death or sign a substitution of counsel. (Whitehorn Decl., ¶¶ 4-5.) Mr. Whitehorn is an attorney in good standing with the State Bar of California. (*Id.*, ¶ 1.) Plaintiff is a legal entity and cannot appear in court except through counsel. A "corporation may not proceed in propria persona." (*Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal.App.3d 501, 504, discussing *Merco Construction Engineers, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724.) The court therefore grants the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Mr. Whitehorn shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

25-CLJ-04491

RICHARD KASS VS. ELENA SUAREZ

RICHARD KASS
ELENA SUAREZ

ANDREW B. PETERS
PRO SE

Defendant's Motion to Set Aside Default

TENTATIVE RULING:

Defendant Elena Suarez's Motion to Set Aside Entry of Default is **DENIED**.

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect; application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code Civ. Proc., § 473 subd. (b).) The six month period begins to run when a default, not the default judgment, is entered. (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 59-60.)

Here, default was entered against defendant on July 28, 2025, and defendant's Motion to Set Aside Default was filed on April 6, 2026, over seven months later. Defendant's Motion is therefore untimely and is not eligible for relief under Code of Civil Procedure, section 473 subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 11**

CLJ483991

GCFS INC. VS. VALWAYNE BRINAS ET AL.

GCFS, INC., A CALIFORNIA CORPORATION
VALWAYNE V. BRINAS

BRIGHTON K. HUSHING-KLINE

Assignee Absolute Resolutions Investments, LLC's Hearing on Defendant's Claim of Exemption

TENTATIVE RULING:

The creditor has withdrawn its opposition and this motion is vacated.



POSTED: 3:00 PM